



# EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

September 7, 2021, 4:00 p.m.  
Eagle Mountain City Council Chambers  
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

## 4:00 P.M. WORK SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmember Jared Gray.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Zac Hilton, Streets and Storm Drain Manager; Eric McDowell, Chief Deputy Sheriff; Tyler Maffitt, Communications Manager; Evan Berrett, Assistant to the City Administrator; and Spencer Harris, Management Intern.

CITY STAFF PRESENT ELECTRONICALLY: Kimberly Ruesch, Finance Director; and Embret Fossum, UFA Battalion Chief.

Mayor Westmoreland called the meeting to order at 4:06 p.m.

### 1. CITY ADMINISTRATOR INFORMATION ITEMS

#### 1.A. UPDATE – City Administrator Items

##### General

- The utility rate study is nearing completion. A few unexpected items have arisen that need to be taken into consideration. The City is waiting for a finalized update of the water impact fee analysis.
- On August 16, 2021, the City closed on the purchase of 80 acres for the sewer treatment plant which will service growth for many years to come.
- Right-of-way is being secured and design is in progress for the second phase of Airport Road. The City held a bond meeting with Lewis, Young, Robertson, and Burningham, Inc. and rates are favorable and could beat the current inflation rates by four times or more. Construction is anticipated April through September of 2022.

##### Community Development

- The Tyson facility is up and running for training and the certificate of occupancy is being finalized.
- Facebook received a certificate of occupancy for building two which completes the first one million square feet of the project.

- Construction is underway for the Macey's grocery store.
- Community Development is working on rezoning existing developments to current zones; rezoning will occur in stages.

#### Wastewater

- The plant expansion to 2.4 million gallons per day is complete and in operation.
- Streets, stormwater, and wastewater crews are working around the clock to create four new rapid infiltration basins on the eastern portion of the land recently purchased by the City for plant expansion to service growth and winter storage for the City's economic development partners.
- The SCADA system is being upgraded on the new portion of the plant.

#### Parks

- Cory B. Wride Memorial Park Phase 2 and SilverLake Woodhaven Park have been completed and are waiting for power sourcing from Rocky Mountain Power.

#### Engineering

- The areas undergoing compaction and storm drain pipe installation on Pony Express Parkway should be completed and paved on September 22<sup>nd</sup> and 23<sup>rd</sup>. The project has been delayed due to construction material shortages. The City appreciates drivers' patience.
- The walking trail for Cedar Valley High School and Frontier Middle School has been completed.
- Widening of Mid Valley Road, included in the FY 2022 budget, will be unable to be completed this fall as planned and has been delayed until spring of 2022 due to material shortages.
- Construction for Airport Road Phase 1 should be completed by the end of October and the materials for the traffic signal are onsite.
- A pre-construction meeting for the Bobby Wren Boulevard traffic signal was held earlier today and the project should be completed by the end of 2021.
- The State issued the stream alteration permit for the Tickville Wash and a pre-construction meeting is planned.

City Engineer Chris Trusty said that the State issued the stream alteration permit to determine the impact to the wash prior to levying any reparations or penalties for construction activity that occurred before the permit was approved.

### **1.B. PRESENTATION – 2021 Resident Survey Results**

City Management Intern Spencer Harris presented the item. Forty years was the median age of survey participants, and of the approximately 880 participants, about two-thirds were female. The survey results do not directly correspond with the demographics of the City; however, meaningful data can still be extrapolated from the respondent sample population. Over fifty percent of the respondents have a college education, a combined median household income of \$75,000 to \$100,000, and 95% are homeowners. Resident satisfaction had decreased slightly from a score of 1.51 in 2016, on a scale of 0 to 2, to 1.41 in 2021. The highest-rated services in the City are garbage collection, sewer services, fire services, utility billing, special events, and public information. Garbage collection and special events experienced the largest gains in approval ratings.

Repeated themes in the resident responses include appreciation for the small-town feel, sense of community, wildlife, dark skies, City events, trails, and parks. Regarding growth, residents expressed the desire for a focus on sustainable growth, planning ahead for growth, and requiring larger lots and less density. To address growth concerns, residents proposed to get ahead of infrastructure, to expand main roads, to build more roads in and out of City Center, and to regulate and enforce better construction site management including dust mitigation. Recreation requests included a pool and rec center, a dog park, more parks in The Ranches, and a large, cement skate park. Economic development feedback requested balancing development efforts between large businesses and small businesses; growing local retail, entertainment, and restaurant industry; and providing more support for existing local businesses. Other miscellaneous feedback included requests for a second fiber internet provider, more youth activities, a larger library, a reduction in the size of the Overland development sign, and a dedicated police force.

### 1.C. DISCUSSION – Outfield Fencing at Pony Express Regional Park for a Dog Park

Parks and Recreation Director Brad Hickman presented the item. Over the past few years, community members and entities have requested a dog park and a memorandum of understanding has been written for a dog park at Pony Express Regional Park. Conflict has arisen at this park because some residents are using the area for a dog park and others are using the park for baseball. Staff proposes fencing the area to the east for a designated dog park area and retaining the west area as a baseball diamond. The area intended for the dog park has grass, trees and irrigation and would include a leashing/unleashing entry point and grading with road base installation for parking in the northeast portion of the park. The City obtained a fencing bid for approximately \$20,000; however, the quote is only valid for seven days due to the frequent changes in construction material costs. The use would be appropriate and a good utilization of the resources available in this area requiring minimum City investment. Possible support from fundraising activities by other entities could assist with financing. He recommended scheduling the item to return to the next meeting for a budget amendment should the Council be in favor of the project.

Councilmember Burnham expressed her support of the plan due to the economy of using existing material, resident desire for the park, and the appropriateness of the location as it would not impact homes.

Councilmember Clark expressed her support for the project but was concerned with the difficulty in providing water to the area. She suggested a water buffalo or another interim solution until waterlines are available to provide a permanent water source.

Mr. Hickman said staff could evaluate the cost of running waterlines to the area and of providing a temporary water source to determine the appropriate course of action. The type of drinking fountain contemplated would have a spout for humans and a separate spout for dogs. Non-potable water could be provided for dogs but is not meant for human consumption. Providing potable water would be more cost-prohibitive. Pony Express Regional Park master planning might impact the design or shift the location of the dog park in relation to the overall design.

Councilmember Gray supported the dog park and said he would prefer the City invest in providing a high-quality park.

Councilmember Curtis inquired regarding mitigation plans for stray balls entering the dog park area from the baseball field. He verified that the master planning for the park would include the cemetery and requested consideration of maintaining a peaceful atmosphere for the cemetery.

Mr. Hickman said that the baseball park would not be programmed for games and will be utilized for practice. Due to the low chances of interaction, the likelihood of balls entering the dog park is low and could be addressed with a taller fence or other mitigation if deemed necessary. The cemetery master planning will address noise and nuisance concerns.

Councilmember Love expressed concern with the maintenance burden to the City should residents not clean up after their dogs. She also suggested delaying the fence install to a slower season to reduce the cost.

Mr. Hickman said his hope is that residents will be responsible; issues will be addressed by the Parks Department if necessary. The plans for the park will include consideration of the current market value of materials and construction timing. The bids he received were priced reasonably enough that he felt confident in bringing the plan to the Council for approval rather than delaying in the hopes that material prices come down.

#### 1.D. CONCEPT PLAN – Porter's Crossing

*This item was moved to a future agenda at the applicant's request.*

Councilmember Curtis provided feedback to be conveyed to the applicant. He stated that the current agreement requires the multifamily uses remain in pod 9; however, he would prefer the multifamily be located in front of the commercial uses. Because the agreement included specific housing types and institutional uses, he is more concerned with the changes to the housing types proposed than the overall density contemplated.

#### 1.E. DISCUSSION – Animal Code

Assistant City Administrator/Community Development Director Steve Mumford presented the item. On July 13, 2021, staff presented a proposed code change to the Planning Commission which would allow two horses per half acre and remove references to animals in the Airpark Zone. After significant discussion and a number of comments from the public, the Planning Commission recommended, with a vote of 3 to 2, a code change which removed references to animals in the Airpark Zone and made no changes to the number of animals allowed, as code permits individuals to apply for a conditional use permit under an alternative animal management plan. Staff presented the Planning Commission's recommendations for changes to EMMC 6.10 to the City Council on August 3, 2021. The Council advised staff to bring multiple options for changes to Table 6.10.090 to be considered.

Table 6.10.090 in its current form limits the total number of animals by acreage range and with fencing minimum requirements based upon animal type. Mr. Mumford presented a potential amendment to Table 6.10.090 that permits an increased number of animals based on each half-acre of land, rather than lot size ranges. Two other options were presented that include using a points system. Animals would be assigned a point value and total points allowed would be limited by lot size. Proposal #1 and Proposal #2 both institute a point system that allows for two animal units per half-acre; however, Proposal #2 allows an increased number of animals per unit, generally allowing one additional large or two additional medium-sized animals per unit.

Mr. Mumford noted that an animal point system can be confusing and difficult to explain; however, it would be the best way to address the cumulative animal impact. Regarding nuisance issues, he explained canine nuisance complaints are handled through the Sheriff's Office. The City receives rooster complaints most frequently and discourages rooster ownership. Nuisance complaints regarding other animals are rare and are generally in association with larger lot properties.

Councilmember Curtis recommended addressing the various animal issues, such as the total number of permitted animals and nuisances, individually. He desires to clarify the standards and feels that nuisance issues are separate from the total number of animals, as nuisances tend to arise with the care and housing of the animals, rather than the total number of animals on a lot.

Councilmember Clark clarified she desires to have statistical data to evaluate the prevalence of complaints to determine if a code change is needed or if issues should be addressed individually, and she advocated for addressing the cumulative effect. She noted that the Council determined to retain the rooster code as written and address complaints through nuisance standards. As a chicken owner, she believes that chickens and rabbits belong in a different category than other small animals such as goats, small pigs, or ducks.

Councilmember Gray concurred that the number of animals does not have a direct correlation to nuisance issues. He advocated for determining the appropriate number of animals for the chart first and addressing nuisance issues later. Although the City is unlikely to experience issues with the cumulative impact of animals, he is amenable to a point system as a precautionary measure. He advocated for miniature breeds to be counted differently than full-sized animals and for removing chickens and rabbits from the table.

Councilmember Love stated she desires to address problems with the current standards such as scalability and maximums per animal. The current standards are based upon lot size ranges without consideration of cumulative impacts or fairness for people that desire one animal type compared to those housing a combination of different animals. She expressed concerns with addressing miniature breeds for all types of animals and suggested the standards address common breeds and utilize conditional use permits to address unique animal uses and situations. She explained that her proposed system is based upon what she feels is appropriate after a site visit to a City residence with animals. She agrees with Councilmember Burnham's suggestion to have large, medium, and small animal designations and agreed with excluding limits on small animals.

Councilmember Burnham stated she desires to maintain sensible animal rights and that some residents came to Eagle Mountain due to other cities reducing or removing animal rights. She

agrees with the concerns expressed by Councilmembers Curtis, Clark, and Love. She advocated for a point system rather than the fencing system, as she feels the point system is less complicated and easier for staff to measure. She also would prefer to assign points based upon animal size rather than animal type.

Discussion ensued regarding the animal types to include on the table including various types of fowl raised for eggs, whether to implement a point system, ways to clarify the point system through examples or other methods, the desired metrics and animal size determinations to include on the chart, the difficulty in measuring and enforcing the required fencing standards, and the differences in total number allowance between the current system and the two, point system proposal options.

Mr. Mumford verified the direction from Council was for staff to prepare an amendment with a point system based upon animal size rather than type, scalable per half-acre or acre increments, including considerations for miniature breeds, and to include examples to assist residents in understanding the point system. He clarified that nonpermitted animals are listed in EMMC Chapter 6.

## 2. AGENDA REVIEW

### CONSENT AGENDA

#### 13. PRELIMINARY PLATS & SITE PLANS

##### 13.A. SITE PLAN CONCEPT – Smith Ranch Community Park

MHTN Architects Senior Landscape Architect Vince Olcott reviewed the site plan concept presented during the July 20, 2021, City Council meeting and explained the options for replacing the pickleball courts with a skate park as requested by the Council. The total estimated cost for all phases of the park is \$5.8 to \$5.9 million. The cost of the four pickleball courts included in the previous proposal is estimated at \$173,000, excluding lighting. A 7,000-square foot concrete skate park would cost approximately \$450,000. A 12,000-square foot concrete skate park would cost approximately \$926,000.

Mr. Hickman verified that the Lehi skate park is approximately 11,000 square feet; the Sandy skate park is approximately 30,000 square feet. The four pickleball courts would occupy 7,000 square feet; however, up to 20,000 square feet of park space could be allocated for a skate park. He suggested that if the City decides to build a skate park, it should be larger enough for long-term viability and usability. The cost of the ten pickleball courts at Cory Wride Memorial Park, including lighting, was about \$500,000. It would cost approximately an additional \$60,000 to add lighting to the pickleball courts at Smith Ranch Community Park. Park impact fees collected by the City depend upon the number of building permits that are issued in a year. The City allocated \$1 million for the initial phase of the park and the availability of funds will determine the construction phasing for the park.

Mayor Westmoreland stated he feels this park would be an appropriate location for a skate park.

Councilmember Love said she approves of the area as an appropriate location and desires to prioritize the skate park due to the availability of pickleball courts in the City. She noted that youth are currently using the neighboring retail area for skate activities and the proximity of the ninja course to the skate park would provide multiple amenities for older youth at one park.

Councilmember Clark said that businesses and churches have had issues with skate activities and this location is as close as possible to the impacted areas and is also near multifamily housing without preserved park space.

Councilmember Burnham stated her reservations with the plan include funding for the skate park and the prioritization of the phasing.

Councilmember Curtis said that the City could allocate future park impact fees should the Council determine the skate park is desirable and felt to be an appropriate use for unallocated impact fees. Should the City install pickleball courts at Woodhaven Park, he would prefer a different amenity at Smith Ranch Park. He feels this area would be more appropriate than Woodhaven Park and would provide a different experience than the modular skate park with metal rails in the City Center. He would like to utilize the increased park and open space impact fees on unique programming elements to provide a variety of amenities that serve many residents. He suggested thoroughly scrutinizing the plan to determine areas where costs could be reduced in order to allocate funds to the skate park with consideration of the amenities at other parks and possibly adding lighting to the skate park.

Mr. Hickman advocated against removing amenities to fund different amenities. He would prefer to prepare a plan they are confident with and to secure the necessary funding. Staff can research the cost of lighting for the skate park; however, he believes most skate parks do not have lighting and the impact of lighting on the homes near the park should be considered.

### **3. ADJOURN TO A CLOSED EXECUTIVE SESSION**

**MOTION:** *Councilmember Clark moved to adjourn to a closed session for the purpose of discussing reasonably imminent litigation, the purchase, lease, or exchange of real property pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Burnham seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

The meeting was adjourned at 6:15 p.m.

### **7:00 P.M. POLICY SESSION – CITY COUNCIL CHAMBERS**

**ELECTED OFFICIALS PRESENT:** Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love.

**ELECTED OFFICIALS PRESENT ELECTRONICALLY:** Councilmember Jared Gray.



CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; and Eric McDowell, Chief Deputy Sheriff.

CITY STAFF PRESENT ELECTRONICALLY: Kimberly Ruesch, Finance Director; and Embret Fossum, UFA Battalion Chief.

#### 4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 7:32 p.m.

#### 5. PLEDGE OF ALLEGIANCE

Councilmember Burnham led the Pledge of Allegiance.

#### 6. INFORMATION ITEMS/UPCOMING EVENTS

- September 11, 2021, from 6:00 to 7:30 p.m. Ties and Tiaras will be held at the Overland Clubhouse. This is a dance for all parents and children. Door prizes and light refreshments while supplies last. Registration is full, but names are still being accepted for the waitlist. Please email [events@emcity](mailto:events@emcity) to be placed on that list.
- Community Cleanup will be held on September 18, 2021. The City is still looking for volunteers to help with the clean-up projects. There will be a light breakfast and an Eagle Mountain City hat given away to those who sign up. You can find the complete list of projects and the registration form on the City website, [www.eaglemountaincity.com](http://www.eaglemountaincity.com).
- A movie in the park will be held following the Community Cleanup. The movie was previously canceled due to poor air quality. The City will be showing A Goofy Movie at SilverLake Amphitheater. Food trucks will be available and the movie will start at 8:00 p.m.

To receive City notifications, including emergency info, news events, and traffic alerts, sign up at [emcity.org/notifyme](http://emcity.org/notifyme).

#### 7. PUBLIC COMMENTS

*Mayor Westmoreland opened public comment at 7:35 p.m.*

Mike Boyd said that he lives on a five-acre lot in Cedar Pass Ranch. His understanding of the current Municipal Code standards is that the system is not cumulative and only allows for a maximum of 12 large animals which he thinks is generous for a residential area. He advocated against allowing over 30 animals especially considering the type of soil in the City is prone to dust issues. He clarified that he is not against animal rights but feels that permitting more than 12 animals results in unlivable nuisance issues; the number of animals in the proposed code amendment is excessive.



**MOTION:** *Councilmember Clark moved to continue public comment until after item 9.A. the Proclamation declaring September Childhood Cancer Awareness Month. Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

## 9. PROCLAMATION

### 9.A. MOTION – A Proclamation Declaring September Childhood Cancer Awareness Month.

*This item was discussed prior to item 8.A.*

Mayor Westmoreland read a Proclamation Declaring September Childhood Cancer Awareness Month.

**MOTION:** *Councilmember Clark moved to adopt a proclamation declaring September 2021 Childhood Cancer Awareness Month. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

Miss Eagle Mountain's Outstanding Teen 2020 and 2021 Olivia Huish explained that her advocacy for childhood cancer awareness and pageant participation was inspired by her older sister, Sadie Brynne Huish, Little Miss Eagle Mountain 2008, who passed away from brain cancer in 2009. In August, Miss Olivia Huish reached out to City officials to recognize September as Childhood Cancer Awareness Month and to recognize local children affected by cancer. She desires to continue her sister's life and legacy by honoring children that have or are currently fighting cancer.

## 7. PUBLIC COMMENTS

*Mayor Westmoreland resumed public comment at 7:58 p.m.*

Nicole Miles spoke in support of a skate park for Smith Ranch Park. Her son, Jack has been skating for eight years and it has had a positive impact on their lives. They desire to have that opportunity for him and other youth in the community.

Jack Miles said that his parents are not always able to drive him to skate parks. Having one within walking distance would increase his ability to participate in the sport.

David Lowery said he is Jack Miles' skate coach and has been working with kids and teaching skateboarding for ten years. He has seen skateboarding increase confidence and serve as a beneficial aspect in other areas of life including school. He and his wife have worked with other cities to develop skateboarding recreation programs and contests to assist families with skateboarding access and resources.

Dacia Rocha said she has lived in Eagle Mountain for 17 years and advocated for a skate park in The Ranches area. She presented the Mayor and Council a petition with signatures from managers and representatives from all businesses at Porter's Crossing Town Center Shopping area in support of the skate park. Although the skate park is expensive, the benefit of the safety awarded for the youth is worth the investment. She offered to assist with fundraising efforts for the skate park if needed.

Bettina Cameron requested an amendment addressing animal nuisance issues be added to a future agenda to ensure the item is addressed in a timely manner.

Craig Whiting advocated for Eagle Mountain to promote large lot sizes and branding through preserving animal rights and utilizing the large amount of available land to compensate for the City's location challenges. He expressed his support for the wildlife corridor and amenities such as the skate park to encourage outdoor activities for children.

John Hubbard said when he purchased his land 16 years ago, the number of animals permitted on a lot was limited to nine. He was told the City would not address nuisance issues until the zoning was resolved; the zoning issue is the reason the City has not received more complaints. He expressed frustration regarding nuisances arising due to horse manure in his neighborhood and advocated for responsible animal ownership. He feels that a six-acre lot is insufficient for 36 horses.

Emma Faye submitted an announcement and tickets to the Mayor and Councilmembers for the Eagle Mountain Community Theater's production of A Midsummer Night's Dream on September 10<sup>th</sup>, 11<sup>th</sup>, and 13<sup>th</sup> at Silverlake Amphitheater at 7:00 p.m.

*Mayor Westmoreland closed public comment at 8:20 p.m.*

## **8. CITY COUNCIL/MAYOR'S ITEMS**

*This item occurred after item 9.A.*

### Councilmember Curtis

None.

### Councilmember Burnham

Councilmember Burnham explained that she and Councilmember Love were wearing t-shirts to promote causes important to them. In conjunction with the September 11<sup>th</sup> anniversary commemoration and service activities, a blanket and pillowcase-making service project will be held on September 16, 2021, from 10:00 a.m. to 12:00 p.m. and 1:00 to 3:00 p.m. at the Senior Center. A cornhole tournament will be held September 25, 2021, at 10:00 a.m. at Walden Park with proceeds benefiting four Eagle Mountain children battling cancer. She encouraged residents to visit the City website for additional opportunities to serve.

#### Councilmember Love

Councilmember Love said that September is also Suicide Prevention Awareness Month. She encouraged anyone struggling with suicidal thoughts to reach out to the suicide hotline at 1-800-273-8255 for help. Her family lost a member a year ago yesterday to suicide and promoting suicide prevention is important to her due to the personal impact on her life.

#### Councilmember Clark

Councilmember Clark said she was wearing gold to support childhood cancer awareness. Several groups have worked together to create ten days of service in correlation with the 20<sup>th</sup> anniversary of September 11<sup>th</sup>. A Hero Parade to honor first responders will pass all City elementary schools and end at Cedar Valley High School. Student Councils from Rockwell Charter High School and Cedar Valley High School and the City Youth Council will provide care packages to the first responders. Cedar Valley High School's Homecoming football game will be held Friday night, and Saturday at 7:30 a.m. there will be a flag-raising ceremony and breakfast in remembrance of the first responders who have sacrificed or lost their lives to help keep others safe.

#### Councilmember Gray

Councilmember Gray congratulated the candidates that are advancing to the General Election in November and appreciates the involvement and service of all the candidates.

### **CONSENT AGENDA**

#### **10. BID AWARDS**

10.A. 2021 New Well Design – Jones and DeMille

#### **11. BOND RELEASES**

11.A. Eagle Village Plat 1 – Into Warranty

11.B. Spring Run Phase B, Plat 4 – Into Warranty

11.C. Spring Run Phase B, Plat 5 – Into Warranty

11.D. Hidden Hollow Phase B, Plat 1 – Out of Warranty

11.E. Overland Phase A, Plats 2 & 3 – Out of Warranty

11.F. Sage Park Phase A, Plat 2 – Out of Warranty

#### **12. MINUTES**

12.A. August 3, 2021 Minutes – Regular City Council Meeting

12.B. August 24, 2021 Minutes – Special City Council Meeting and Canvass

### 13. PRELIMINARY PLATS & SITE PLANS

#### 13.A. SITE PLAN CONCEPT – Smith Ranch Community Park

**MOTION:** *Councilmember Clark moved to approve the consent agenda removing item 13.A. and placing it as a scheduled item. Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

### SCHEDULED ITEMS

### 13. PRELIMINARY PLATS & SITE PLANS

#### 13.A. SITE PLAN CONCEPT – Smith Ranch Community Park

Councilmember Curtis said that a resident expressed concerns that the noise from the skate park will disturb wildlife in the area and suggested the decibel level of noise generated by skate parks be researched. Councilmember Curtis noted that the skate park would be over 500 feet from the kestrel box and the edge of the wash, and the distance from the road to the kestrel box is approximately 400 feet. He asked if the noise from the skate park would be louder than the noise generated by traffic.

Councilmember Burnham asked how close the park would be to homes and expressed concern regarding noise nuisance.

Councilmember Clark suggested planting trees and berms to mitigate the noise impact on wildlife. The space and other amenities between the skate park and homes would serve as a buffer and reduce the noise impact.

Mr. Hickman said that the City conducted decimal tests for the skatepark at Pony Express Park and installed berms to reduce the noise impact. Aboveground metal ramps create more noise than enclosed concrete skate parks. He did not have data regarding the decibel level differences but can research the noise levels of each type of skate park. He verified that the proposed cost accounts for underground, concrete skate bowls and is estimated at \$75 per square foot.

Economic Development Director Aaron Sanborn said a study conducted by SPA Skateparks designer and contractor found that the noise levels of concrete skate parks range from 64 to 78 decibels, wooden skate parks range from 75 to 85 decibels, and steel-frame or modular skate parks range from 75 to 95 decibels.

Councilmember Curtis stated for comparison that heavy traffic registers at 80 to 89 decibels and a vacuum cleaner or average radio produces approximately 75 decibels.

Councilmember Burnham expressed concern that, although berms can help with noise mitigation, they can also obscure visibility and increase the chances of vandalism and other issues.

Mr. Hickman said that outside of late-running sporting events, City parks close at 10:00 p.m. During the summer, the days are long enough for park amenities to not require lighting. Lighting would only be utilized during the spring and fall and the cost of the lighting compared to the usage time and benefit should be considered.

Discussion ensued regarding skate park lighting safety benefits, usage impact, costs, potential concerns, the proximity and impact of the skate park to the closest homes, nighttime skating mitigation options and obstacles, and funding options.

**MOTION:** *Councilmember Love moved to approve the site plan concept for Smith Ranch Community Park with the larger skate park option in place of the pickleball courts. Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

Mayor Westmoreland recessed the meeting from 9:02 to 9:06 p.m.

*Councilmember Gray left the meeting due to technical difficulties at approximately 9:05 p.m.*

#### 14. [STONEBRIDGE MONTESSORI](#)

##### [14.A. PUBLIC HEARING/ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Approving a Rezone for Stonebridge Montessori.](#)

Mr. Mumford presented the item. The Ranches Master Development Plan has expired, thus a rezone is required. The Future Land Use Plan designation for the location is Community Commercial. The CC and CN zones are appropriate within the General Plan designation. Staff had recommended the building be turned 90 degrees to front along Ranches Parkway with the parking located behind the building. The Planning Commission supported the layout submitted by the applicant as it increases student safety. A three-and-a-half-foot headlight screen is required east and south of the parking lot. Originally staff requested a lane on the west side of the property extend north and connect to an access road on the neighboring property, as a master site plan and preliminary plat were approved for the northern property in 2008 for Saddle Junction, but has not been constructed. The applicant expressed safety concerns for the students should the northern connection be required. The road would benefit future projects but not the school. Should the road not be required for this project, it would need to be constructed entirely on the project to the west.

The front entry faces towards the parking lot, not a main pedestrian way, as called for by EMMC 17.72.040(B). It is at the discretion of the City Council to determine if the articulation provided complies with standards found in EMMC 17.72.040(D).

The Planning Commission voted unanimously to recommend approval of the rezone with the condition that the property be rezoned to the Commercial Neighborhood (CN) rather than the Commercial Community (CC) zone.

The Planning Commission voted unanimously to recommend approval of the site plan with the following conditions:

1. The site plan shall be approved without a drive-aisle connecting the northern property;
2. The applicant shall provide proof that the stacking distances are adequate and will not cause traffic to back onto public right-of-way;
3. A 3½-foot high landscape berm shall be added around the perimeter of the parking area; and
4. The applicant shall provide additional directional signs in the parking lot.

Applicant representative Tyler Dow confirmed that the coffee room indicated on the site plan was a breakroom for staff rather than a retail store. He explained he was building the school for a lessee that has run other Montessori schools. The multisensory educational practices at this location would follow the same model. Traffic attendants will be on site to help with pedestrian safety, traffic flow, and stacking. A right-in turn is anticipated to provide onsite stacking rather than the two-directional traffic flow indicated on the site plan. The staggered start times for the classes should reduce the traffic congestion. The area in the southeast corner of the plan is a stormwater detention area.

City Engineer Chris Trusty said the school access is spaced away from Ranches Parkway and the applicant has attempted to accommodate sufficient stacking distances to avoid traffic backing onto Ranches Parkway.

Councilmember Love stated that as the adjacent locations will be commercial uses, a north-south drive aisle will be necessary and expressed concern that allowing the applicant to exclude the drive aisle for this project will cause design and access alignment difficulties during the future development of the adjacent parcels.

Mr. Dow said they desire to provide as large of an outdoor play area as possible to support the multisensory learning experiences of the students. The Planning Commission felt that preventing traffic from passing along the west side of the school and playground would increase the safety of the children. He requested the burden of the north-south connection be placed on the developer of the property to the west.

Councilmember Curtis expressed concern that the plan did not show any landscaping on the east side of the school.

Discussion ensued regarding a northern access road, ownership of the various properties, master development of the area, and Municipal Code connectivity requirements.

*Mayor Westmoreland opened the public hearing at 9:40 p.m. As there were no comments, Mayor Westmoreland closed the hearing.*

Mr. Mumford stated Municipal Code requires all parking and other vehicular use areas be interconnected with adjacent properties, but access to all four sides of a property is not required.

Discussion ensued regarding public schools not being required to connect to commercial properties, emergency access considerations, the type of connection to provide, the proposed and potential alignment of the connection to the north, the vested rights of the Saddle Junction plan's road connections, possibly requiring the applicant to provide a half-width of the drive aisle, and considerations of the benefit and burden of being required to provide a partial or full drive aisle.

*Councilmember Gray returned to the meeting at 9:50 p.m.*

Discussion ensued regarding the problems and benefits of the curvature of the proposed alignment, the area indicated for the road versus paved parking, directing staff to review the plan to determine an appropriate alignment and access with the applicant, and the impact to the proposed design to accommodating the drive aisle.

Mr. Dow requested that should the Council determine to burdened them with the entire length of the drive aisle, for the minimum width possible to be located on their property.

Discussion ensued clarifying direction to staff to work with the applicant to provide a sensible alignment between the property and the road south of the Maverik to the north of the property.

**MOTION:** *Councilmember Burnham moved to approve an ordinance of Eagle Mountain City, Utah, approving a rezone for Stonebridge Montessori to the Commercial Neighborhood zone. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

#### 14.B. MOTION – Site Plan

**MOTION:** *Councilmember Burnham moved to approve the site plan for Stonebridge Montessori with the following conditions:*

- 1. The applicant shall work with staff to determine a drive aisle to connect to the northern property, permitting less than half-width of the drive aisle be located on the applicant's property;*
- 2. The applicant shall provide proof that the stacking distances are adequate and will not cause traffic to back onto the public rights-of-way;*
- 3. A 3 ½-foot high landscape berm shall be added around the perimeter of the parking area; and*
- 4. The applicant shall provide additional directional signs in the parking lot.*

*Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

#### 15. CITY COUNCIL/MAYOR'S BUSINESS

None.

#### 16. CITY COUNCIL BOARD LIAISON REPORTS



Councilmember Love

Councilmember Love said the Eagle Mountain Chamber of Commerce will hold a luncheon at Garden Near the Green on Thursday, September 9, 2021.

Councilmember Clark

Councilmember Clark said that the Parks and Recreation Advisory Board has an open position. A Ham radio licensing test will be held on Saturday, September 25, 2021. The Ham radio antenna is nearing completion. Be Ready Eagle Mountain will hold classes in preparation for qualifying for an emergency preparedness grant and the plan will be presented to the Council during an upcoming meeting. A CERT emergency drill will be held on September 18, 2021, in conjunction with the City service projects. Youth Council is participating in several of the service projects, parade, and breakfast. Alpine School District Schoolboard Member Julie King spoke at a Youth Council meeting regarding school district issues. Councilmember Clark thanked the Mayor, staff, Sheriff's Office, and crossing guards for helping direct vehicular and pedestrian traffic during the beginning of the school year and increasing student safety.

17. COMMUNICATION ITEMS

17.A. Upcoming Agenda Items

18. ADJOURNMENT

**MOTION:** *Councilmember Curtis moved to adjourn the meeting at 10:11 p.m. Councilmember Burnham seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

The meeting was adjourned at 10:11 p.m.

Approved by the City Council on September 21, 2001.

  
For: Fionnuala B. Kofoed, MMC  
Director of Administrative Services/City Recorder

